CHAPTER 12

SOCIAL JUSTICE

CHAPTER ESSENCE AT A GLANCE:
Analyze the principles of justice: equal treatment for equals, proportionate justice, recognition of special needs, and John Rawls Theory of Justice under the Veil of Ignorance.

4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **Three Foundational Principles of Justice:** Justice requires harmonizing three distinct principles: Equal treatment for equals (treating everyone with identical dignity), Proportionate justice (rewarding effort, scale of work, and danger incurred), and Recognition of special needs (providing support for disabled and marginalized groups).

• **Just Distribution and State Intervention:** Social justice concerns fair distribution of goods, services, and opportunities across society, requiring governments to ensure basic minimum living conditions (nutrition, clean water, healthcare, schooling) rather than leaving welfare to unfettered markets.

• **John Rawls and the Veil of Ignorance:** Rawls proposed a thought experiment where individuals in an 'Original Position' choose social principles behind a 'Veil of Ignorance'—unaware of their own caste, class, gender, or abilities—rationally opting for fairness to guard against the worst possible fate.

• **Rawlsian Two Principles of Justice:** First: Each person has an equal right to the most extensive scheme of equal basic liberties; Second: Social and economic inequalities are permissible only if they benefit the least advantaged members of society (Difference Principle) and are attached to offices open to all under fair equality of opportunity.

ESSENTIAL FORMULAS & GOVERNING EQUATIONS

$$\text{Justice Strategy} \Rightarrow \max\left(\min\left[\text{Welfare of Least Advantaged Member}\right]\right)$$

Maximin decision rule guaranteeing maximum security from the worst socio-economic outcome

$$\text{Social Justice} \Leftrightarrow \text{Equal Treatment} + \text{Proportionate Reward} + \text{Special Needs Provision}$$

Harmonization of basic equality, individual merit, and compassionate assistance

CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** John Rawls does not advocate complete equalization of wealth; he maintains that income differences are justified if they create maximum benefits for the poorest members of society.

• **Alert:** The 'Veil of Ignorance' is a hypothetical thought experiment used for moral reasoning, not a historical event or practical electoral mechanism.

HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

1. State the two fundamental principles of justice proposed by John Rawls. [Score: 2 Marks]

Answer & Key Valuation Steps:

• **Equal Basic Liberties:** Each person has an equal right to the most extensive scheme of equal basic liberties compatible with similar liberties for all. **[1 Mark]**

• **Difference Principle and Fair Opportunity:** Socioeconomic inequalities must benefit the least advantaged members of society and attach to offices open to all under fair equality of opportunity. **[1 Mark]**

2. Explain what John Rawls meant by the 'Veil of Ignorance'. [Score: 3 Marks]

Answer & Key Valuation Steps:

• **Hypothetical Condition:** A philosophical thought experiment where individuals design the basic rules of society without knowing their own identity. **[1 Mark]**

• **Ignorance of Personal Status:** Decision-makers do not know their wealth, family background, caste, race, religion, gender, or innate natural abilities. **[1 Mark]**

• **Rational Choice of Fairness:** Under uncertainty, rational people choose rules that protect the weakest sections, ensuring their own survival even if they occupy the worst social position. **[1 Mark]**

3. Explain the three principles of justice: equal treatment for equals, proportionate justice, and recognition of special needs. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. Equal Treatment for Equals:** Every individual possesses equal moral worth and human dignity; laws must treat citizens equally without arbitrary discrimination. **[1.5 Marks]**

• **2. Proportionate Justice:** Rewards and compensation should be proportional to the effort invested, skill required, and danger endured (for example, rewarding a miner or surgeon more than routine work). **[1.5 Marks]**

• **3. Recognition of Special Needs:** Providing special consideration and assistance to disabled individuals, sick persons, or historically oppressed communities. **[1 Mark]**

4. Explain why the free market system alone is incapable of ensuring social justice for marginalized populations. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **Profit Driven Orientation:** Free markets allocate goods and services based on purchasing power rather than human necessity, neglecting impoverished citizens. **[1 Mark]**

• **Neglect of Public Goods:** Markets underprovide essential public goods such as primary healthcare, clean drinking water, and rural sanitation that yield low commercial profit. **[1 Mark]**

• **Compounding Vulnerabilities:** Those lacking assets, education, or marketable skills are marginalized in market transactions, perpetuating generational poverty. **[1 Mark]**

• **Necessity of State Redistribution:** Democratic governments must regulate markets, mandate fair wages, and provide social safety nets to uphold human dignity. **[1 Mark]**

5. Discuss the concept of just distribution and describe how a democratic state can guarantee a basic minimum standard of living for all. **[Score: 5 Marks]**

Answer & Key Valuation Steps:

• **Scope of Just Distribution:** Concerns fair sharing of societal resources, wealth, and opportunities among all citizens, ensuring no one is deprived of a dignified life. **[1 Mark]**

• **Universal Access to Nutrition and Water:** Ensuring guaranteed food security and potable water through programs like the Public Distribution System (PDS). **[1 Mark]**

• **Free Quality Basic Education:** Mandating free, compulsory schooling to provide every child with foundational skills for social mobility. **[1 Mark]**

• **Comprehensive Healthcare Services:** Establishing accessible public health centers and immunization networks to protect citizens against catastrophic illness. **[1 Mark]**

• **Livelihood and Fair Wages:** Enforcing statutory minimum wages and employment guarantee initiatives (like MGNREGA) to prevent destitution. **[1 Mark]**

6. Critically examine how the Indian Constitution integrates equal treatment, proportionate merit, and special needs to advance social justice. **[Score: 6 Marks]**

Answer & Key Valuation Steps:

• **Equal Treatment Enactment (Articles 14, 15, 17):** Guarantees equality before law, bans discrimination on grounds of religion or caste, and abolishes untouchability. **[1.5 Marks]**

• **Proportionate Merit and Opportunity (Article 16):** Guarantees equal opportunity in public employment based on competitive merit, examinations, and professional qualifications. **[1 Mark]**

• **Recognition of Special Needs (Articles 15(4) and 16(4)):** Provides constitutional reservations and developmental quotas for Scheduled Castes, Scheduled Tribes, and backward classes. **[1.5 Marks]**

• **Directive Principles (Articles 38, 39, 41):** Mandates the state to minimize wealth disparities, secure right to work, and provide public assistance in unemployment and sickness. **[1 Mark]**

• **Harmonious Balancing:** The Supreme Court has repeatedly affirmed that affirmative action is not a negation of merit but an equalization tool making genuine competition possible. **[1 Mark]**